

Contentious Chamber

Decision on the merits 76/2025 of April 24, 2025

File reference: DOS-2023-04302

Subject: Complaint regarding data processing in the context of a direct marketing campaign

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, President, and Messrs. Yves Pouillet and Frank De Smet, Members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant"

The defendants:

'Y1'SA, represented by Gerrit Vandendriessche and Jan Clinck (hereinafter: the first defendant)

'Y2'SA, represented by Elisabeth Delinte (hereinafter: the second defendant)

Decision on the merits 76/2025 - 2/17

I. Facts and procedure

1. The complaint concerns the processing of the complainant's personal data by the defendants for the purpose of sending direct marketing by Y1 to the complainant. Y1 (first defendant) obtained the concerned data via Y2 (second defendant), a media agency specialized in direct marketing. Y2 had itself received this data from Z3 (formerly Z3), a commercial data broker, which had initially obtained it from Z2 (formerly Z2).

2. On October 18, 2023, the complainant filed a complaint with the Data Protection Authority against Y1, Z4, Y2, and Z3.

3. On October 25, 2023, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

4. On March 11, 2024, the Contentious Chamber decided, under Article 95, § 1, 1° and Article 98 of the LCA, that the case could be addressed on the merits.

5. On March 11, 2024, the concerned parties were informed by registered mail of the provisions as set out in Article 95, § 2 and Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for the defendants' response conclusions was set for May 16, 2024, for the complainant's reply conclusions for June 6, 2024, and for the defendants' rejoinder conclusions for June 27, 2024.

6. On March 12, 2024, Z3 requested a change of procedural language to French and a postponement of the deadlines for concluding.

7. On March 18, 2024, Y1 expressed its wish to be heard, in accordance with Article 98 LCA.

8. On March 25, 2024, Y2 also requested the change of the procedural language to French and the postponement of the deadlines for concluding.

9. On March 27, 2024, the Contentious Chamber proposed that each party draft their conclusions in their own language. Each party would then be responsible for translating their conclusions for the other parties. The final decision of the Contentious Chamber would be drafted in French and Dutch.

Furthermore, the Contentious Chamber decided to extend the deadlines for concluding by two weeks, as it had not been clear until that day in which language the conclusions could be submitted by each

party. Consequently, the deadlines for receiving the parties' conclusions were set for May 6, May 27, and June 17, 2024.

10. On March 28, 2024, Y1 requested that separate concluding periods be established for Y1, on one hand, and for Z3 and Y2, on the other hand.

Decision on the Merits 76/2025 - 3/17

11.

On April 3, 2024, Y2 joined Y1's request to provide separate deadlines for conclusions for each defendant.

12.

On April 8, 2024, the Contentious Chamber considers that there is no need to split the deadlines for conclusions. Indeed, the defendants have the opportunity to respond to the conclusions of the other party in the reply conclusions, as well as at the hearing. Taking into account the transmission of a copy of the file to the defendants, the Contentious Chamber makes a final adjustment to the deadlines.

These become:

o

Defendants' response conclusions: May 16, 2024

o

Complainant's reply conclusions: June 6, 2024

o

Defendants' rejoinder conclusions: June 27, 2024

13.

On May 16, 2024, the Contentious Chamber receives the response conclusions from the defendants.

14.

On June 6, 2024, the Contentious Chamber receives the reply conclusions from the complainant.

15.

On June 27, 2024, the Contentious Chamber receives the rejoinder conclusions from the defendants.

16.

On October 28, 2024, the parties are informed that the hearing will take place on November 28, 2024. For the proper conduct of the hearing, the Contentious Chamber requests the parties to indicate in their acknowledgment of receipt whether they accept a bilingual hearing in French and Dutch.

17.

The Contentious Chamber, receiving no objections regarding a bilingual hearing, informs the parties on November 19, 2024, that the hearing will be bilingual and will take place without an interpreter. The Contentious Chamber informs the parties that if they still wish to oppose this, they must notify before November 22, 2024.

18.

On November 26, 2025, the Contentious Chamber informs the parties that it must postpone the hearing to December 17, 2024, due to force majeure.

19.

On December 17, 2025, the parties are heard by the Contentious Chamber.

20. On January 3, 2025, the minutes of the hearing are submitted to the parties.

21.

On January 8, 2025, the Contentious Chamber received some comments from Z3 regarding the minutes, which it decided to include in its deliberations.

22.

On January 9, 2025, the Contentious Chamber received some comments from Y2 and Y1 regarding the minutes, which it decided to include in its deliberations.

23.

Based on the documents in the file, the Contentious Chamber finds that Z2 is a potential interested third party within the meaning of Article 108, § 3, paragraph 2 LCA, in relation to the potential violations by Z3. On January 31, 2024, Z2 was notified by registered mail of the provisions mentioned in Article 95, § 2, as well as those of Article 98 LCA. It is also informed of the possibility of intervening in the proceedings under Article 98 LCA. It informs the other parties that in the event of Z2's intervention,

they will have the opportunity to respond.

24.

On February 26, 2025, Z2 confirmed its intervention as an interested third party in the proceedings.

25.

On March 14, 2025, the Contentious Chamber receives the response conclusions from Z2.

26.

On March 18, 2025, the Contentious Chamber receives the response conclusions on behalf of the complainant.

27.

On March 31, 2025, Y2 indicates that it does not wish to conclude.

28.

On April 8, 2025, the Contentious Chamber receives the reply conclusions from Z3.

29.

On April 9, 2025, the Contentious Chamber receives the reply conclusions from Y1.

30. On April 24, 2025, the Contentious Chamber decides to split the case into two distinct files. This decision is motivated, on the one hand, by the need to ensure the efficiency of the proceedings given the involvement of several defendant parties, and on the other hand, by the existence of substantial differences in the nature of the data processing attributed to the respective defendants. While the processing carried out by Y1 and Y2 mainly falls within the framework of direct marketing, that carried out by Z3 concerns the sale of databases. The Contentious Chamber informed the parties that the complainant's complaint against Y1, Z4, and Y2 will be pursued under file number DOS-2023-04302. The complainant's complaint against Z3 will be pursued under file number DOS-2025-01687. This decision concerns file number DOS-2023-04302.

II. Motivation

II.1. Regarding Z4

31.

First of all, the Contentious Chamber notes that, in addition to the other defendants, the complaint has also been filed against Z4. However, it appears from the documents in the file that Z4 acted as the data protection officer for Y1, and not as the data controller or processor. The Contentious Chamber decides not to continue the examination of the complaint regarding Z4.

II.2. Regarding Y1

32.

Y1 is a retail business for hearing solutions. The contested processing concerns a direct marketing campaign by Y1 titled "Z1," in which it sent...

Decision on the Merits 76/2025 - 5/17

documents printed by mail addressed to the concerned parties, including the complainant. It used for this purpose addresses obtained from Z3 through Y2.

33. On March 11, 2024, Y1 is informed, by registered mail, of the provisions of Articles 95, § 2, and 98 of the law of December 3, 2017. Y1 has been invited to defend against:

- a. The possibility of violating Article 5, paragraph 1, point a), of the GDPR in connection with Article 6 of the GDPR for unlawful obtaining and subsequent sale of personal data;
- b. Potential violation of Article 24.1 GDPR for not adequately verifying whether a dataset was created legally.

II.2.1. Regarding Y1's second argument

34. Y1 first requests the Contentious Chamber to dismiss the complaint on the grounds that it is a dispute ancillary to a broader contractual dispute. It argues that a contractual dispute between Z2 and Z3 underlies the complaint and that this issue should be resolved by a court. Furthermore, Y1 argues that the dispute falls under the regulation of telephone directories provided for by the law of June 13, 2005, relating to electronic communications, making the Belgian Institute of Postal Services and Telecommunications (hereinafter "IBPT") the competent authority.

35. The Contentious Chamber refers to its policy of dismissing complaints, which establishes that the fact that a complaint is ancillary to a broader dispute that must be resolved before a court or another competent authority constitutes a criterion for rejecting the complaint on grounds of opportunity. When

this criterion applies, the Contentious Chamber decides whether or not to examine the complaint based on the social and/or personal impact of the grievances. In this case, the Contentious Chamber first notes that the policy of dismissing complaints does not limit its discretionary power to handle a case or not. As a surplus observation, the Contentious Chamber notes that there are profiling activities and large-scale processing of data when sending direct marketing to a targeted audience, as a result of which it deems that there is a high social impact. Therefore, the Contentious Chamber considers it appropriate to address this complaint.

36. Regarding the argument that the law of June 13, 2005, relating to electronic communications would apply and make the IBPT the competent authority for the present dispute, the Contentious Chamber believes that the potential applicability of this law does not affect its competence to monitor compliance with the GDPR.¹

¹ See also the decision on the merits 19/2021 of February 12, 2021, of the Contentious Chamber. Decision on the merits 76/2025 - 6/17

37.

Consequently, the Contentious Chamber rejects the second plea of Y1, which requests the dismissal of the complaint.

II.2.2. Regarding the violation of Article 5.1.a) GDPR read in conjunction with Article 6 GDPR and the violation of Article 24.1 GDPR

Preliminary remarks

38. Prior to examining Article 5.1.a) read in conjunction with Article 6 GDPR, the Contentious Chamber wishes to clarify its letter of March 11, 2024. In this letter, it invited Y1 to defend itself against a potential violation of Article 5.1.a) read in conjunction with Article 6 GDPR for "illegal obtaining and subsequent sale of personal data." Y1 argues in its conclusions that the "obtaining" of personal data is merely an operation within the framework of personal data processing that must be assessed as a whole. Regarding the potential violation of the aforementioned provisions due to the illegal subsequent sale of personal data, Y1 contends that there can be no violation as there is no indication or evidence in the complaint or in the administrative file that Y1 sold personal data. The Contentious Chamber confirms this interpretation of Article 5.1.a) read in conjunction with Article 6 GDPR, and therefore assesses compliance with these rules for the entirety of the data processing for which Y1 was a data controller. In doing so, it also notes that there is no indication that Y1 resold the data.

39. In addition to the potential violation of Article 5.1.a) read in conjunction with Article 6.1 GDPR, the Contentious Chamber invited Y1, in its letter of March 11, 2024, to defend itself against a potential violation of Article 24.1 GDPR, and more specifically "for not adequately verifying whether a dataset was created lawfully." Article 24 of the GDPR imposes on the data controller, taking into account the nature, scope, context, and purpose of the processing, the obligation to implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with this regulation. This obligation is inseparable from Article 5, paragraph 2, of the GDPR, from which it follows that the data controller is responsible for compliance with the provisions of Article 5, paragraph 1, of the GDPR and must be able to demonstrate it. Article 5, paragraph 2, and Article 24 of the GDPR impose general requirements on data controllers regarding accountability and compliance.²

40. It follows that under Article 5.1.a) and Article 6 of the GDPR, read in conjunction with Article 5.2 and Article 24 of the GDPR, the data controller must ensure and be able to demonstrate that personal data is processed in a manner

² Judgment of the Court of Justice of the European Union of October 27, 2022, Proximus NV v. Data Protection Authority, C-129/21, ECLI-EU:C:2022:833, paragraph 81.

Decision on the merits 76/2025 - 7/17

lawful with respect to the data subject. Given that Article 5.1.a) GDPR read in conjunction with Article 6 GDPR must also be assessed in light of Article 24 GDPR, the Contentious Chamber decides to consider both grievances from its letter dated March 11, 2024, together.

Regarding the violation of Article 5.1.a) GDPR read in combination with Articles 6 GDPR and 24 GDPR

41. Article 5, paragraph 1, point a), of the GDPR provides that personal data must be processed lawfully, fairly, and transparently concerning the data subjects. Furthermore, Article 6.1 GDPR states that the processing of personal data is lawful only if and to the extent that it is based on one of the legal bases set out in Article 6.1.a) to f) GDPR. Before processing, the data controller must verify whether the conditions of one of these possible legal bases are met. Finally, the data controller must implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with this regulation.

42. In this case, Y1 invokes the legal basis provided for in Article 6.1.f) of the GDPR. This legal basis states that processing is lawful insofar as it is "necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, unless the interests or fundamental rights and freedoms of the data subject which require protection of personal data prevail, in particular when the data subject is a child." According to the CJEU, the legal basis referred to in this provision must be interpreted restrictively, as it allows for the legalization of the processing of personal data without the consent of the data subject.

43. The Court of Justice has held that Article 6.1(f) GDPR sets out three cumulative conditions that must be met for the processing of personal data in question to be lawful, namely, first, the pursuit of a legitimate interest of the data controller or a third party; second, the necessity of processing the personal data for the pursuit of the legitimate interest; and third, the condition that the interests or fundamental rights and freedoms of the data subject do not override the legitimate interest of the data controller or a third party.

44. According to Y1, there would be no violation of Article 5, paragraph 1, point a), of the GDPR read in combination with Article 6 of the GDPR in this case for the illegal acquisition and subsequent sale of personal data. The purpose of the processing was to "contact new interested persons who might benefit from assistance."

3 CJEU, judgment of October 4, 2024, *Koninklijke Nederlandse Lawn Tennisbond v. Autoriteit Persoonsgegevens*, C-621/22, ECLI:EU:C:2024:857, paragraph 31 and case law cited.

4 CJEU, judgment of July 4, 2023, *Meta v. Bundeskartellamt*, C-252/21, ECLI:EU:C:2023:537, paragraph 106 and case law cited.

Decision on the Merits 76/2025 - 8/17

auditory based on their demographic characteristics" and this was carried out on the legal basis of legitimate interest (Article 6, paragraph 1, point f), of the GDPR). The determination of this legal basis, as well as a risk analysis, were conducted and documented prior to processing.⁵

45. Firstly, Y1 argues that it pursues a legitimate interest. In this regard, it refers, among other things, to Recital 47 of the GDPR, which states that "the processing of personal data for direct marketing purposes may be regarded as being carried out for the purposes of legitimate interests."

46. Y1 further asserted that it also fulfilled the necessity condition. It would have only processed the personal data necessary for the pursued purpose (contacting prospects), namely: name, address, postal code, language, and gender. Furthermore, Y1 was contractually permitted to use the data only once.

47. The Contentious Chamber believes that a thorough analysis of the third condition in particular applies:

48. The third condition implies that the interests or the fundamental rights and freedoms of the data subject must not override the legitimate interest of the data controller. The Court of Justice has held that this condition involves a balancing of the competing rights and interests at stake, which, in principle, depends on the circumstances of the specific case. To carry out this balancing, Recital 47 of the GDPR provides an important parameter, as it stipulates that the reasonable expectations of the data subject, based on their relationship with the data controller, must be taken into account. These "reasonable expectations" are the expectations that the data subject may have regarding the processing operations that may or will be carried out on their data, concerning the data relating to them that may be subject to such processing, and regarding the purpose or purposes for which they will or may be processed and by whom. Recital 47 also provides that the existing relationship between the data controller and the data subject affects the determination of the reasonable expectations of the

data subject. For example, a data subject would not reasonably expect their data to be processed by a person with whom they have never had contact.

49. Y1 asserts in its conclusions that its own interests, considering the measures it has put in place, outweigh the rights of the data subjects. Firstly, it argues that the letter in question was neither intrusive nor risky to the rights of the complainant and that, on the contrary, a benefit was offered (namely, a free hearing test). Additionally, the data concerned would not be sensitive and there is no large-scale processing.

5 Annex B.1 to Y1's summary conclusions.

Decision on the merits 76/2025 - 9/17

because the direct marketing campaign was sent only once and the data was not combined with data obtained from other sources.

50. In this regard, the Contentious Chamber first notes that the letters sent were titled "Z1," which could suggest to the interested parties a public interest initiative. However, during the hearing, Y1 clarified that it was not carrying out a public interest mission. This shows that the letter may be misleading. Secondly, the Contentious Chamber notes that although the letter was sent only once, it was sent to a group of concerned individuals, and these individuals were contacted in writing based on their membership in a certain age group. This combination may create a feeling among the concerned individuals that could be perceived as invasive.

51.

Furthermore, Y1 argues that the complainant could reasonably expect to receive commercial letters since (according to Z3) he would have consented to the resale of his data for direct marketing purposes.

52.

In this context, the Contentious Chamber recalls that Article 24 of the GDPR provides that data controllers must implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing of personal data is carried out in accordance with the principles and obligations set out in the GDPR. Thus, the data controller must be able to demonstrate that it has balanced the legitimate interests it represents against the rights and freedoms of the concerned individuals and that this balancing is in its favor. If applicable, the data controller must also be able to demonstrate that it has put in place safeguards (for example, technical and organizational measures) to ensure that the rights and freedoms of the concerned individuals do not outweigh its legitimate interests.

53. Y1 argues that it has taken appropriate technical and organizational measures in accordance with Article 24.1 of the GDPR. First, Y2 provided it with the contractual agreement that the address data could be used by Y1 in compliance with the GDPR. Thus, Article 8 of Y2's general terms states that the latter "takes all reasonable measures to ensure that its source partners comply with the GDPR, notably by requesting a written commitment to compliance." According to Y1, a more in-depth examination of the contractual agreements between Y2 and its source partners (i.e., Z3) was not necessary, because it had no contractual relationship with these parties and because it was entitled to have legitimate trust, based on the legal obligations of Z3 and Z2, that the complainant had consented to the processing of his data for direct marketing purposes.

Decision on the Merits 76/2025 - 10/17

personal nature. Y1 further argues that it used the Robinson list in order not to send letters to individuals who have indicated that they no longer wish to receive addressed advertising. Thirdly, Y1 invokes the risk analysis and the mitigation measures it has taken in the context of balancing interests (see above), and fourthly, Y1 invokes the fact that a data protection officer (Z4) advised it on the risks associated with data processing. Finally, Y1 argues that the unlawful processing is the result of a breach of contract or a dispute between Z2 and Z3, of which Y1 could not have been aware. It argues that no organizational measures were reasonably available to become aware of it.

54. However, as the data controller, Y1 is required by the Litigation Chamber to prove that its processing of personal data can be based on a valid legal basis. The Litigation Chamber has previously ruled that it is not sufficient for a data controller to invoke the alleged "lawfulness" of

personal data or purchased databases. Indeed, it is the responsibility of data controllers, before cooperating with intermediary organizations to enhance their marketing campaigns by requesting personal data they do not already possess, to ensure the origin of the data, how it was collected, on what legal basis, by whom, for what purposes, for what period, and for what processing. The data controller cannot merely include in the contract with the intermediary organization a clause stipulating the obligation to provide data in accordance with data protection legislation (or any other obligation of similar scope). The existence of such a clause is not sufficient to exclude the liability of the data controller in the event of one or more violations of the GDPR.

55. This does not imply that the data controller is obliged to verify the compliance of third parties with the GDPR. However, it has the obligation to take measures to ensure its own compliance with the GDPR, which implies that, in certain circumstances, it must take into account the processing of personal data in its entirety, particularly regarding the initial collection of personal data. This is indeed an essential element to verify that the data subject could reasonably expect the processing of their personal data and, by

8 Annex B.1 to Y1's summary conclusions

9 Point 70 of Y1's summary conclusions

10 Decision on the Merits 137/2021 of December 8, 2021, § 36 and 37, available at the following link: <https://www.gegevensbeschermingsautoriteit.be/publications/beslissing-ten-gronde-nr.-137-2021.pdf>

11 Decision 163/2022 of November 16, 2022, § 25, available at the following link:

<https://www.gegevensbeschermingsautoriteit.be/publications/beslissing-ten-gronde-nr.-163-2022.pdf>.

Decision on the Merits 76/2025 - 11/17

Consequently, the processing in this case could be legally based on Article 6, paragraph 1, point f), of the GDPR.

56. In this case, Y1 claims that the complainant would have given their consent during the initial collection of their data. On this basis, it argues that the processing carried out by Y1 would fall within the reasonable expectations of the data subject.

57. The Contentious Chamber first notes that Y1 provides no concrete evidence to support this assertion. While it invokes presumed consent at an earlier stage of the data processing chain, it is incumbent upon it, as the data controller, to demonstrate this consent. A mere reference to statements or contractual agreements with intermediaries (Y2 and Z3) is not sufficient.

58. Secondly, and by way of surplus, the Contentious Chamber recalls that the mere fact that a data subject has, at some point, given their consent to a processing does not automatically justify subsequent processing. Consent, as defined in Article 4, point 11, of the GDPR, must always be free, specific, informed, and unambiguous, and it is only valid within the specific context for which it was actually given.

59. Consequently, the invocation of an alleged prior consent without material evidence cannot constitute a sufficient basis to conclude that the processing, in this case, fell within the reasonable expectations of the data subject. In light of the above, the Contentious Chamber finds that Y1 does not demonstrate that the processing of personal data could reasonably be expected by the complainant.

60. It also follows that Y1 has not demonstrated that its interest outweighs the interests and fundamental rights of the data subjects. Given that the three-part test for processing data based on legitimate interest involves cumulative conditions, it is not necessary to examine whether Y1 meets the other two conditions of Article 6.1.(f) of the GDPR. The Market Court has already ruled in this regard that if any one of the three elements of the three-part test is not met, the Contentious Chamber can rightly justify that Article 6.1.(f) of the GDPR cannot constitute a possible legal basis.¹²

61. In these circumstances, it should be considered that Y1 has not demonstrated that its interest outweighs the interests and fundamental rights of the data subjects, so that the processing cannot fall under Article 6.1.(f) of the GDPR. It has therefore violated the obligations imposed by Articles 5.1.a), 6.1, and 24 of the GDPR.

12 Brussels Court of Appeal, Chamber 19, Market Section, judgment of June 14, 2023, SNCB v. GBA, 2022/AR/723

II.3. Concerning Y2

62.

Y2 is a media agency specialized in direct marketing. In this case, it acted as an intermediary between its client, Y1, and Z3, a company offering address databases.

63. On March 11, 2024, Y2 was informed, by registered mail, of the provisions of Articles 95, § 2, and 98 of the law of December 3, 2017. It was invited to defend itself against:

a. The possibility of violating Article 5, paragraph 1, point a), of the GDPR read in conjunction with Article 6 of the GDPR for the unlawful obtaining and subsequent sale of personal data;

b. Potential violation of Article 24.1 GDPR for failing to adequately verify whether a dataset was created legally;

c. The possibility of violating Article 12.2-4 GDPR read in conjunction with Articles 15 and 17 GDPR due to the absence of a response to the complainant's requests.

64. Y2 first argues that it is not responsible for the processing. It claims to have acted only as an intermediary, meaning it transferred to Y1 the address file that Z3 had provided to it. This file was neither modified nor accessed by Y2 and was deleted as soon as Y1 confirmed its receipt. According to Y2, the purpose of the processing was to enable Y1 to obtain the contact details of potential clients to conduct a direct mail marketing campaign. Therefore, Y1 would have determined the purpose and means, with Y2 acting only as a subcontractor. The Contentious Chamber does not follow this reasoning.

65. The GDPR defines the "data controller" as the entity that, alone or jointly with others, determines the purposes and means of the processing of personal data. The EDPB has clarified that the concept of data controller refers to the impact of the data controller on the processing of data, based on a decision-making power or control over processing activities. This control may arise from legal provisions, result from an implicit power, or be based on the exercise of real influence. This analysis requires a factual assessment, testing the existing agreements against the factual circumstances of the relationship between the parties.

66. In this case, it appears from the case files that Y2 indeed had its own purpose for the processing, namely the collection and provision of data to its clients, and that it has...

Decision on the Merits 76/2025 - 13/17

determined this purpose itself. Furthermore, it also determined the means of processing itself, in particular how it received the data and transmitted it to Y1. Thus, the Contentious Chamber finds that Y2 was a data controller for having obtained personal data from Z3 and transmitted it to Y1.

II.3.1. Regarding the violation of Article 5.1(a) GDPR read in conjunction with Article 6 GDPR and the violation of Article 24.1 GDPR

67.

The Contentious Chamber invited Y2 to defend itself against possible violations of Article 5.1(a) read in conjunction with Article 6.1 GDPR, and Article 24.1 GDPR. Article 5.1(a) of the GDPR provides that personal data must be processed lawfully, fairly, and transparently concerning the data subjects. Article 6.1 GDPR further provides that the processing of personal data is lawful only if and to the extent that it is based on one of the legal bases set out in Article 6.1(a) to (f) GDPR. Before proceeding with the processing, the data controller must verify whether the conditions of one of these possible legal bases are met. Finally, the data controller must implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with this regulation.

68. Article 24 of the GDPR imposes on the data controller, taking into account the nature, scope, context, and purpose of the processing, to implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with this regulation. This obligation is inseparable from Article 5.2 of the GDPR (see point 39), from which it follows that the data controller is responsible for compliance with the provisions of Article 5.1 of the GDPR and must be able to demonstrate it. Article 5(2) and Article 24 of the GDPR impose general requirements on data controllers regarding accountability and compliance with the rules. It follows that under Article 5(1)(a), read in conjunction with Article 6 of the GDPR, in connection with Article 5(2) and

Article 24 of the GDPR, the data controller must ensure and be able to demonstrate that personal data is processed in a manner that is lawful concerning the data subject. Article 24 GDPR clarifying the application of Article 5.1(a) read in conjunction with Article 6 GDPR, the Contentious Chamber finds that it must assess the two complaints in its letter of March 11, 2024, together.

69. Y2 claims that the processing of the complainant's personal data in this case was lawful under Article 6(1)(f) of the GDPR, which states that "processing is necessary for the purposes of the legitimate interests pursued by the data controller or

17

Judgment

of

the

Court

of

Justice

of

the

European

Union

of

October 27, 2022,

Proximus

NV

against

Gegevensbeschermingsautoriteit, C-129/21, ECLI:EU:C:2022:833, paragraph 81.

Decision on the merits 76/2025 - 14/17

of a third party" (underlined by Y2). Y2 would have processed the data for the legitimate interests of Y1 (using the data to conduct a direct marketing campaign).

70. The Court of Justice found that Article 6.1(f) of the GDPR sets out three cumulative conditions that must be met for the processing of personal data referred to therein to be lawful, namely, firstly, the pursuit of a legitimate interest of the data controller or a third party, secondly, the necessity of processing personal data for the pursuit of the legitimate interest, and thirdly, the condition that the interests or fundamental rights and freedoms of the data subject do not override the legitimate interest of the data controller or a third party.¹⁸

71.

The Contentious Chamber considers that a thorough analysis of the third condition in particular applies.

72.

Y2 argues that it balanced the interests of the data subjects and those of Y1, notably by verifying that the data had been obtained lawfully by Z3, by committing that Y1 would not use the data for purposes other than those for which they were rented, by allowing only a one-time use of the data, and by committing that the data would not be disclosed to third parties.

73.

In order to ensure that the data provided by Z3 complies with the obligations of the GDPR, Y2 consulted Z3's general terms and conditions, which would indicate that the processing of the data is carried out in accordance with the applicable legal provisions. Furthermore, Z3 would have indicated that the data was collected in compliance with the applicable legal provisions, and more specifically on the basis of the consent of the data subjects.

74.

As already explained in point II.2.2 of this decision, a data controller cannot merely refer to the statements of an intermediary party or include a clause in the agreement concluded with that party stating that the latter has the obligation to provide data in accordance with data protection legislation. Each data controller is itself required to know, among other things, the origin of the data, how it was

collected, on what legal basis, by whom, for what purposes, for how long, and for what processing. Without this information, the data controller cannot demonstrate, in accordance with Article 24.1 of the GDPR, that the processing is carried out in compliance with this regulation.

75.

Y2 does not demonstrate that the complainant could reasonably expect that his data would be transmitted by a data broker to a third party for a direct marketing campaign conducted by a commercial entity with which he had had no prior contact. The Contentious Chamber recalls that the interests and fundamental rights of the data subjects may, in particular, prevail in processing situations where the data subjects do not reasonably expect further processing (see recital 47 of the GDPR), as in the case at hand.

76.

In light of the above, the Contentious Chamber finds that Y2 has not demonstrated that Y1's interest outweighs the interests and fundamental rights of the data subjects. Given that the three-part test for data processing based on legitimate interest involves cumulative conditions, it is not necessary to examine whether the defendant meets the other two conditions of Article 6(1)(f) of the GDPR. The Market Court has already ruled in this regard that if any one of the three elements of the three-part test is not met, the Contentious Chamber can rightly conclude that Article 6.1(f) of the GDPR cannot constitute a possible legal basis.¹⁹

77. In these circumstances, it must be noted that Y2 has not demonstrated that Y1's interests outweigh the interests and fundamental rights of the data subjects, so that the processing cannot fall under Article 6.1(f) of the GDPR. Thus, it has violated the obligations imposed by Articles 5.1(a), 6.1, and 24 of the GDPR.

II.3.2. Regarding the violation of Article 12.2-4 of the GDPR read in conjunction with Articles 15 and 17 of the GDPR

78.

The complainant exercised his rights of access and erasure of data by letter addressed to Y2 on October 10, 2022. Y2 forwarded this letter to Z3, which responded on October 12, 2022. On November 4, 2022, the complainant requested Y1, Z3, and Y2 to erase his data based on Article 17 of the GDPR, as well as information on the measures taken to achieve this. Y2 contacted Y1 and Z3 to ensure that they would respond to the complainant. Z3 responded on November 7, 2022, and Y1 responded on November 29, 2022.

79.

However, it appears from the case file that Y2 did not respond itself to the complainant's requests. This constitutes a violation of Article 12.3 of the GDPR, which states that "The data controller shall provide the data subject with information on the action taken in response to a request under Articles 15 to 22, without undue delay and in any event within one month of receipt of the request..."

80. In these circumstances, it must be considered that Y2 has violated the obligations imposed by Article 12.3 of the GDPR read in conjunction with Articles 15 and 17 of the GDPR.

III. Measures

81. Under Article 100 of the LCA, the Contentious Chamber has the power to:

19 Brussels Court of Appeal, Chamber 19, Market Section, judgment of June 14, 2023, SNCB v. GBA, 2022/AR/723, para.

Decision on the Merits 76/2025 - 16/17

1° dismiss the complaint;

2° order the dismissal;

3° pronounce the suspension of the ruling;

4° propose a settlement;

5° issue warnings and reprimands;

6° order compliance with the requests of the concerned individual to exercise these rights;

7° order that the interested party be informed of the security issue;

8° order the freezing, limitation, or temporary or permanent prohibition of processing;

9° order compliance of the processing;

10° order the rectification, restriction, or deletion of data and the notification of such to the recipients of the data;
11° order the withdrawal of the accreditation of certification bodies;
12° impose penalties;
13° impose administrative fines;
14° order the suspension of cross-border data flows to another State or an international organization;
15° forward the file to the Public Prosecutor of Brussels, who will inform it of the follow-up actions taken on the file;
16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

III.1. III.1. Regarding Y1

82. The Litigation Chamber finds that Y1 has violated Article 5.1.a) of the GDPR in conjunction with Article 6 of the GDPR and Article 24.1 of the GDPR. It emphasizes that the data processing was unique and that Y1 has stated that it has deleted the data in the meantime. Taking this into consideration, the Litigation Chamber decides, pursuant to Article 100, § 1, 5° of the WOG, to issue a reprimand against Y1.

III.2. III.2. Regarding Y2

83. The Litigation Chamber finds that Y2 has violated Article 5.1.a) of the GDPR in conjunction with Article 6 of the GDPR, Article 24.1 of the GDPR, as well as Article 12.3 of the GDPR, in conjunction with Articles 15 and 17 of the GDPR. It emphasizes that the data processing was unique and that Y2 has stated that it has deleted the data in the meantime. Taking this into consideration, the Litigation Chamber decides, pursuant to Article 100, § 1, 5° of the WOG, to issue a reprimand against Y2.